Delegate Background Guide

UNHRC

UNITED NATIONS HUMAN RIGHTS COUNCIL

Protecting the Right to Privacy in the Age of State-Sponsored Surveillance and Facial Recognition

BACKGROUND GUIDE

Prepared for delegates | MEA

Letter from the Dais

Honourable Delegates,

Welcome to the United Nations Human Rights Council. Digital surveillance can help public authorities investigate serious crime, locate missing people, and respond to security threats. Yet when surveillance is secret, indiscriminate, discriminatory, or carried out without independent oversight, it can undermine privacy and chill freedom of expression, peaceful assembly, and association.

This agenda asks you to consider how states can protect public safety while respecting human rights. Facial recognition and other biometric tools raise difficult questions about accuracy, consent, necessity, proportionality, data retention, and remedies when systems cause harm.

We invite you to build proposals that are practical, rights-based, and attentive to different legal systems and security concerns. Strong outcomes will include safeguards, oversight, transparency, and meaningful access to remedy.

Sincerely,
The Dais

Introduction to UNHRC

The United Nations Human Rights Council (HRC) is an intergovernmental body responsible for promoting and protecting human rights around the world. It addresses thematic and country-specific concerns, conducts the Universal Periodic Review, and appoints Special Procedures, including Special Rapporteurs. It can adopt resolutions and make recommendations, but it is not a world court and does not directly enforce national laws.

The right to privacy is protected under international human-rights law, including Article 17 of the International Covenant on Civil and Political Rights (ICCPR). States may have legitimate security objectives, but any interference with privacy must be grounded in law and assessed against principles such as necessity and proportionality. Privacy concerns also intersect with equality, freedom of expression, assembly, movement, and due process.

Introduction to the Agenda

State-sponsored surveillance can include communications interception, location tracking, biometric databases, spyware, camera networks, and automated facial recognition. Facial recognition systems compare a face image with stored images or templates to verify or identify a person. These systems may serve legitimate purposes, but their scale and opacity can create serious risks when they operate without clear legal limits.

Those risks include mass monitoring of public spaces, inaccurate matches, discriminatory error rates, function creep, data breaches, and the use of surveillance to intimidate journalists, activists, minorities, or political opponents. Even where a system is technically accurate, its use may still be disproportionate if it collects information on everyone in a public space to pursue a narrow law-enforcement objective.

> **Delegates should consider laws that specify permitted purposes, independent authorization, strict limits on real-time identification, impact assessments, data minimization, retention and deletion rules, public reporting, independent audits, and accessible remedies. The debate is not simply "security versus privacy"; it concerns how to protect safety while maintaining legality, accountability, and human dignity.**

Key Terms

TERM	DEFINITION
Right to privacy	Protection against arbitrary or unlawful interference with a person's privacy, family, home, or correspondence.

TERM	DEFINITION
Biometric data	Personal data derived from physical or behavioural characteristics, such as facial geometry or fingerprints.
Facial recognition	Technology that verifies or identifies a person by analysing facial features.
Mass surveillance	Large-scale monitoring or collection of information about populations, often without individualized suspicion.
Necessity	A requirement that an interference pursue a legitimate aim and be needed to achieve it.
Proportionality	A test asking whether an interference is appropriately limited relative to its stated aim.
Data minimization	Collecting and retaining only data that is adequate, relevant, and necessary for a stated purpose.
Independent oversight	Review by a body sufficiently separate from the agency conducting surveillance.
Function creep	Use of data or technology for purposes beyond those originally disclosed or authorized.

Key Issues

1. Legal basis and clear limits

Surveillance powers should be defined in accessible law, with specific purposes and limits. Broad or secret rules can leave people unable to understand or challenge how they are monitored.

2. Accuracy and discrimination

Facial recognition performance may vary across demographic groups and operating conditions. Independent testing, public procurement standards, and human review are important safeguards.

3. Public-space surveillance

Real-time facial recognition can track movements and associations at scale. Delegates should assess whether targeted alternatives could meet the same objective with less intrusion.

4. Oversight and authorization

Judicial or independent authorization, audit trails, and post-use review can reduce abuse. Emergency exceptions should be narrow, time-limited, and reviewable.

5. Data security and retention

Biometric databases can create lasting risks if breached or repurposed. Rules should govern access, retention, deletion, sharing, and remedies after misuse.

6. Freedom of expression and assembly

People may avoid protests, journalism, or civic participation if they believe they are constantly watched. Safeguards must account for these indirect effects.

7. Cross-border spyware and accountability

Commercial surveillance tools may be used across borders. Export controls, human-rights due diligence, investigation, and remedies raise difficult questions of jurisdiction and responsibility.

Major Stakeholders

States and law-enforcement agencies

Set policy and use surveillance tools under national law.

UN Human Rights Council

Adopts resolutions, conducts reviews, and establishes mandates.

OHCHR and the Special Rapporteur on the right to privacy

Provide analysis and recommendations on privacy and emerging technologies.

Courts and independent regulators

Authorize or review surveillance and provide remedies where empowered.

Technology companies and vendors

Develop, sell, maintain, and sometimes operate surveillance systems.

Civil society and digital-rights groups

Research impacts, support affected communities, and advocate for safeguards.

Journalists, activists, and minority communities

May face heightened risks from targeted or disproportionate surveillance.

Data-protection authorities and auditors

Assess compliance, security, accuracy, and accountability.

Past International Actions and Frameworks

Universal Declaration of Human Rights (1948), Article 12

Recognizes protection against arbitrary interference with privacy.

International Covenant on Civil and Political Rights (1966), Article 17

Creates binding obligations for States Parties regarding arbitrary or unlawful interference with privacy.

HRC Resolution 34/7 (2017)

Addressed the right to privacy in the digital age.

HRC Resolution 48/4 (2021)

Continued the Council's work on privacy in the digital age.

OHCHR reports on privacy and digital technologies

Examine surveillance, encryption, biometrics, and safeguards.

HRC Resolution 55/3 (2024)
Renewed the mandate of the Special Rapporteur on the right to privacy.

UN Guiding Principles on Business and Human Rights (2011)
Set out the State duty to protect human rights and the corporate responsibility to respect them.

Timeline

DATE	DEVELOPMENT
1948	Universal Declaration of Human Rights adopted.
1966	ICCPR adopted; Article 17 addresses privacy.
2011	UN Guiding Principles on Business and Human Rights endorsed.
2017	Human Rights Council adopts Resolution 34/7 on privacy in the digital age.
2021	The Council continues adopting resolutions on privacy and digital technologies.
2022	OHCHR reports on the right to privacy in the digital age and related technology risks.
2024	HRC Resolution 55/3 renews the mandate of the Special Rapporteur on the right to privacy.
Present	Debate continues over how to regulate facial recognition and other biometric surveillance; delegates should verify the latest national and regional rules before citing them.

Key Questions a Resolution Must Answer

1. What legal tests should apply before state agencies deploy real-time facial recognition in public places?
2. When should independent authorization be required, and what emergency exceptions, if any, are justified?
3. How can governments test for demographic bias and publish meaningful performance information?
4. What retention, deletion, and access rules should govern biometric databases?
5. What remedies should be available to people who are wrongly identified or unlawfully monitored?
6. How can procurement rules and corporate due diligence reduce the sale or misuse of abusive surveillance tools?

Bibliography and Further Reading

Use these official and institutional sources as starting points, and check the latest documents before citing statistics or claiming that a policy is current.

OHCHR – The Right to Privacy in the Digital Age
https://www.ohchr.org/en/issues/digitalage/pages/digitalageindex.aspx

UN Human Rights Treaty Body – ICCPR
https://www.ohchr.org/en/instruments-mechanisms/instruments/international-covenant-civil-and-political-rights

HRC Resolution 55/3 (2024)
https://docs.un.org/en/A/HRC/RES/55/3

OHCHR – Guiding Principles on Business and Human Rights
https://www.ohchr.org/sites/default/files/documents/publications/guidingprinciplesbusinesshr_en.pdf

UN Special Rapporteur on the Right to Privacy
https://www.ohchr.org/en/special-procedures/sr-privacy

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